

* *LETARGE vs. DE TUYLL*,—*Grant's Chancery Reports*, Vol. 1, p. 227 ; and the distinction is very clearly drawn in the judgment of the Court of Appeal in the case of *STEWART vs. HOWLAND* between the cases in which relief can, and where it cannot, be given in opposition to the words of the conveyance---in short, where the Statute of Frauds must prevail, and where it can be held inapplicable, because to use it as a shield would be to make it the means of effectuating fraud. The case of *STEWART vs. HOWLAND* was decided in December 1850, and will be found in *Grant's Reports*.

The Jurisdiction of the Court of Chancery is frequently invoked in cases of fraud, where an advantage has been gained by one party over another, who may have his advantage strengthened by having the *Law on his side*. This is the case often enough, where a person has, in ignorance of his actual rights, and not being in a position clearly to understand the effects of his act, executed papers which must have their full effect at Law, but which may be considered in Equity with reference to the real merits of the transaction arising out of all the circumstances. On this subject, though the case goes to other points, the reader is referred to *STUART vs. HORTON*,—*Grant's Chancery Reports*.

The Jurisdiction of Equity embraces the whole numerous class of partnership cases, and those wherein the relations of trustee and *cestui-que-trust* are in question.

A partnership has to be dissolved, and the affairs wound up, and in the meantime one partner desires to be protected against the fraudulent collection and expenditure of the partnership funds. A decree is made, under which the Master has to take the accounts. An injunction is granted, which prevents any improper interference with the assets ; and the business is directed to be managed by a "Receiver," who, as the Agent of the Court, collects the assets, and the Court disposes of them in favour of those whom the event of the suit may show to be properly entitled. Such is the case of *PRENTISS vs. BRENNAN*,—*Grant's Chancery Reports*, Vol. 1, p. 371.

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